

Court No. - 3

Case :- WRIT - C No. - 22399 of 2022

Petitioner :- Safiur Rahama

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Pavan Kumar Srivastava

Counsel for Respondent :- CSC, Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Chetan Chatterjee, learned counsel for the respondent no. 3.

2. This writ petition has been filed praying for the following reliefs :

"a. Issue writ order or direction in nature of certiorari quashing the provisional assessment dated 06.12.2019 and demand notice dated 15.07.2021 issued by the Executive Engineer, Vidyut Vitran Khand-III, Ghosi, District Mau.

b. Issue a writ order or direction in mandamus commanding and directing the respondents not to take any coercive action against the petitioner in pursuance of provisional assessment dated 06.12.2019 and demand notice dated 15.07.2021 issued by the Executive Engineer, Vidyut Vitran Khand-III, Ghosi, District Mau."

3. Learned counsel for the respondent no. 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.8.2022

A. V. Singh